CAPITAL NORVEX

Institutional Private Lending | Quebec & Ontario

PARTNERSHIP AGREEMENT

PRIVATE REAL ESTATE CO-FINANCING

CONSTRUCTION & INFRASTRUCTURE LOANS

Capital Norvex Inc. — Institutional Version — Quebec & Ontario

PARTNER	___________________________________
TYPE OF FINANCING	Commercial Construction / Infrastructure
CONTRIBUTION AMOUNT	$___________________________________ CAD
ANNUAL RETURN RATE	_____ % per year
DATE	___________________________________
FILE No.	___________________________________

Structured Capital. Controlled Ambition.

CONFIDENTIAL — For the exclusive use of the signing parties and their legal advisors

1. INTERPRETATION AND DEFINITIONS

1.1 Interpretation

Unless the context otherwise requires, section headings are inserted for convenience only and do not limit the scope of the provisions. The singular includes the plural and vice versa. Any reference to a statute includes its amendments, restatements or successors. Terms not defined herein have their customary meaning in the commercial real estate lending industry in Quebec.

1.2 Definitions

"Agreement": This Partnership Agreement, including all schedules, amendments and ancillary documents incorporated by reference.

"Loan Asset": The construction or infrastructure real estate financing file granted by Capital Norvex to a third-party Borrower, in which the Partner participates financially under this Agreement.

"Capital Norvex": CAPITAL NORVEX INC., a corporation constituted under the laws of the Province of Quebec, acting as exclusive manager and sole administrator of the Partnership.

"Contribution": The capital amount the Partner commits to deposit and maintain in favour of Capital Norvex to co-finance the Loan Asset identified in Schedule A.

"Disbursement": Any advance of funds made to the Borrower under the Loan Asset, including the first disbursement before the notary and any subsequent progressive disbursement.

"Borrower": Any corporation or commercial entity to whom Capital Norvex grants private real estate financing of the construction or infrastructure type, in which the Partner's Contribution is deployed.

"Borrower Default Event": Any payment default or breach by the Borrower under the loan agreement binding it to Capital Norvex, including non-payment of interest or principal at maturity.

"Partner Default Event": Any breach by the Partner of its obligations under this Agreement, as defined in Section 10.

"Capital Norvex File Fees": The analysis, arrangement and administration fees representing 3% to 3.5% of the total Loan Asset amount, collected at the first notarial disbursement and belonging exclusively to Capital Norvex.

"Movable Hypothec": The security published by the Partner at the Register of Personal and Movable Real Rights (RPMR) on the Loan Asset held by Capital Norvex, pursuant to articles 2660 et seq. of the Civil Code of Quebec.

"Interest": The annual interest generated by the Loan Asset, calculated daily and compounded monthly on the disbursed Contribution balance, belonging exclusively to the Partner.

"Partner": The individual or legal entity identified in Section 2.2 of this Agreement, acting as a financial co-investor in the Loan Asset.

"Sale Proceeds": All net amounts received upon the sale of a repossessed property or a property sold under judicial authority, after payment of selling costs, priority charges and Capital Norvex's legal fees.

"Net Sale Profit": The surplus of Sale Proceeds after full repayment of the Partner's Contribution, capitalized Interest and Capital Norvex's File Fees.

"RPMR": The Register of Personal and Movable Real Rights maintained by the Quebec Ministry of Justice.

"Repossession": Capital Norvex's exercise of its right to take the mortgaged property in payment or to force its sale under judicial authority, following a Borrower Default Event.

"Norvex Score™": Capital Norvex's proprietary analysis and rating system used for initial assessment, ongoing monitoring and risk management of each Loan Asset.

2. PARTIES

2.1 Capital Norvex Inc. — Exclusive Manager

Corporate Name: CAPITAL NORVEX INC.

Address: ____

Authorized Representative: Yves Barrette

Title: Founder & Director, Private Lending

2.2 Partner

Corporate Name or Full Legal Name: ______________________________

Business Number (BN) or SIN (individual): _________________________

Registered Address: ____

Authorized Representative: ____________________________________

Title: ____

Email: ____

Phone: ____

3. NATURE AND PURPOSE OF THE PARTNERSHIP

3.1 Partnership Spirit — A Relationship of Trust and Transparency

This Agreement is grounded in a genuine partnership relationship built on mutual trust, full transparency and respect for each party's interests. Capital Norvex commits to treating the Partner as a full strategic partner, providing all information needed to monitor their investment safely and in real time. The Partner, in turn, commits to supporting Capital Norvex in achieving its financing objectives with diligence and good faith.

3.2 General Structure

The Partner advances a financial Contribution to Capital Norvex, which is fully deployed by Capital Norvex as private real estate financing of the construction or infrastructure type to a third-party Borrower identified in Schedule A. Capital Norvex acts as exclusive manager, lender of record and sole administrator of the Loan Asset, thereby ensuring the protection of the Partner's rights at every stage.

3.3 Scope — Construction and Infrastructure Loans Only

This Agreement applies exclusively to Loan Assets of the commercial construction and infrastructure financing type, characterized by progressive monthly disbursements based on construction progress. It does not apply to fixed-payment loans (land financing, income property acquisition), which are governed by a separate agreement.

3.4 Independence of the Parties

This Agreement does not create any partnership, trust, joint venture, employment or implied agency relationship between Capital Norvex and the Partner beyond what is expressly provided herein. Each party remains a distinct and independent legal entity.

3.5 Acknowledgment of Norvex Score™

The Partner acknowledges and agrees that Capital Norvex uses its proprietary Norvex Score™ system to analyze, approve, monitor and rate each Loan Asset throughout its term. The Partner accepts decisions made by Capital Norvex based on this system, subject to compliance with this Agreement.

4. FINANCIAL STRUCTURE — REVENUE AND PROFIT SHARING

4.1 Revenue Allocation Table

Revenue Item	Beneficiary
File Fees (3% to 3.5%)	Capital Norvex Inc. — exclusively
Annual Interest (10% to 12%)	Partner — exclusively
Net profit on sale — Repossession only	50% Capital Norvex / 50% Partner (after priority repayment of Partner)
Sale with no net profit — Repossession	Partner recovers 100% of Contribution + capitalized interest. No loss to Partner.
Legal fees (repossession proceedings)	Capital Norvex Inc. — at its own expense

4.2 File Fees — Belong Exclusively to Capital Norvex

The Capital Norvex File Fees, representing **3% to 3.5% of the total Loan Asset amount**, are collected at the first notarial disbursement and belong **exclusively and entirely to Capital Norvex Inc.** The Partner has no entitlement to these fees. They constitute Capital Norvex's compensation for analysis, structuring and administration of the Loan Asset.

4.3 Interest — Belongs Exclusively to the Partner

The annual interest generated by the Loan Asset, at the agreed rate of **10% to 12% per year**, calculated daily and compounded monthly on the disbursed Contribution balance, belongs **exclusively and entirely to the Partner.** Capital Norvex retains no portion of the interest.

Interest accrues without interruption from the first to the last day of the Loan Asset, including throughout the entire construction period, the post-construction stabilization period and the period leading up to the banking exit. There is no interest suspension period. Interest is compounded monthly and repaid in full to the Partner upon file closure.

4.4 Repayment Structure — 18-Month Construction Loan

For Loan Assets of the commercial construction type with a standard term of eighteen (18) months, repayment is structured as follows, as set out in Schedule A:

1. Construction Phase (Months 1 to 18): Funds are disbursed progressively based on construction progress. Interest is compounded monthly on the disbursed balance. No monthly payments are required from the Borrower during this phase.
2. Post-Construction Phase — Stabilization (approx. Months 19 to 20): A period following substantial completion allows the Borrower to lease up the property and prepare for banking exit. Interest continues to accrue and compound without interruption throughout this period.
3. Monthly Payment Phase (from approx. Month 20 onward): The Borrower begins making monthly payments covering current interest while awaiting its permanent bank financing.
4. Banking Exit — File Closure: The Borrower secures its permanent institutional financing and repays Capital Norvex in full: principal, all capitalized unpaid interest and all ancillary fees. Capital Norvex then proceeds with full repayment of the Partner.

4.5 Net Sale Profit Sharing — Repossession Only

The 50/50 profit-sharing mechanism between Capital Norvex and the Partner applies exclusively in the event of a Repossession followed by a sale generating a Net Sale Profit, according to the following priority order:

Priority Order of Distribution of Sale Proceeds:

1. Legal fees, receiver fees, expert fees and all direct realization costs — borne by Capital Norvex, collected as first priority from Sale Proceeds.
2. Full repayment of the Partner's Contribution.
3. Repayment of all capitalized unpaid Interest owed to the Partner.
4. Repayment to Capital Norvex of any amounts advanced in connection with the Repossession.
5. Distribution of the residual Net Sale Profit: 50% to Capital Norvex / 50% to the Partner.

4.6 No Net Profit — Partner Capital Protection

If Sale Proceeds, after settlement of items 1 and 4 above, generate no Net Sale Profit, **the Partner recovers its Contribution and all capitalized Interest in full, and suffers no loss in connection with the sale.** Capital Norvex assumes no obligation to guarantee return or capital beyond the rights conferred by the Movable Hypothec and the structure of this Agreement.

5. PARTNER SECURITY — MOVABLE HYPOTHEC AT THE RPMR

5.1 Mandatory Registration Before Any Disbursement

As security for repayment of the Contribution, Interest and share of Net Sale Profit (if applicable), Capital Norvex grants in favour of the Partner a movable hypothec without delivery on the Loan Asset identified in Schedule A, pursuant to articles 2660 et seq. of the Civil Code of Quebec. This security must be registered by the Partner at the RPMR within five (5) business days of signing this Agreement and, in all cases, before the first Disbursement.

5.2 Scope and Limits of the Security

The Movable Hypothec covers Capital Norvex's receivable rights against the Borrower under the Loan Asset. It does not confer upon the Partner any direct real property right over the Borrower's mortgaged property, any right to intervene in file management, or any direct recourse against the Borrower. The security guarantees only Capital Norvex's payment of amounts owed to the Partner under this Agreement.

5.3 Discharge at Maturity

The Partner irrevocably commits to discharge the RPMR registration within ten (10) business days of receiving full repayment of its Contribution, Interest and share of Net Sale Profit. Any failure to discharge within this period entitles Capital Norvex to proceed with the discharge at the Partner's sole expense.

6. EXCLUSIVE AND ABSOLUTE CONTROL OF CAPITAL NORVEX

6.1 Principle of Absolute Control

Capital Norvex holds at all times absolute, exclusive and discretionary control over all aspects of Loan Asset management, including the operational relationship with the Borrower, legal documentation, site inspections and all credit decisions. The Partner does not intervene in this relationship at any time and may not issue direct instructions to the Borrower or its representatives.

6.2 Exclusive Powers of Capital Norvex

Without limiting the foregoing, the following powers belong exclusively to Capital Norvex:

- Approve, decline or modify the terms and conditions of the Loan Asset
- Manage the amounts and schedule of each Disbursement

- Order site inspections, appraisals and expert assessments
- Declare a Default Event and exercise all available remedies
- Decide to proceed with Repossession or a court-supervised sale
- Appoint a Receiver or any other specialized mandatary
- Initiate and direct all judicial and notarial proceedings
- Negotiate and conclude any settlement or arrangement with the Borrower
- Replace the general contractor or any other site participant
- Directly or indirectly manage construction works in the event of Repossession

6.3 Automatic Monthly Reports to the Partner

Simultaneously with each monthly Disbursement authorization request, Capital Norvex automatically provides the Partner with a complete monthly report on the status of the Loan Asset, including: construction progress, the amount of the Disbursement requested, the cumulative disbursed balance, accrued capitalized Interest, and any material information that may affect the value of the Contribution. The Partner is thus fully informed at every stage of the financing. In the event of a Borrower Default Event, Capital Norvex notifies the Partner in writing within five (5) business days.

6.4 Partner Portal — Real-Time Transparency 24 / 7

Capital Norvex provides the Partner with a **secure digital portal (PWA — Progressive Web Application)**, accessible at all times from any device (smartphone, tablet, computer). This portal constitutes a **contractual right of the Partner**, not merely an administrative convenience. The Partner has real-time access to the following information for all active Loan Assets:

- Disbursed Contribution balance and accrued capitalized Interest
- Complete history of all Disbursements made
- Inspection reports and construction progress updates
- Status of each pending Disbursement authorization request
- File documents: appraisals, permits, insurance, account statements
- Automatic alerts for any material event affecting the file

Real-time transparency is a fundamental and non-negotiable commitment of Capital Norvex to its partners. Capital Norvex commits to keeping this portal fully operational at all times and to integrating any new material information within twenty-four (24) hours of receipt.

7. DISBURSEMENT MECHANISM — PARTNER AUTHORIZATION AND CONTROL

7.1 First Disbursement — Mandatory Before the Notary

The first Disbursement of any Loan Asset is made, without exception, in the presence of a notary designated by Capital Norvex. **This requirement is absolute and may not be waived by either party.** The notary verifies all conditions precedent, proceeds with registration of the first-ranking real estate mortgage in favour of Capital Norvex, confirms the Partner's Movable Hypothec registration at the RPMR, and releases funds in accordance with Capital Norvex's written instructions. This procedure constitutes the Partner's primary legal protection.

7.2 Progressive Monthly Disbursements — Partner Authorization Required

For each subsequent monthly progressive Disbursement, Capital Norvex sends the Partner a Disbursement authorization request at least five (5) business days before the intended date. This request must include:

- The exact amount of the requested Disbursement and the cumulative disbursed balance
- An independent inspection report certifying construction progress
- A certified Cost Report to Date (CRT) signed by the architect or responsible engineer

- Confirmation of compliance with approved budget and schedule
- Partial lien waivers from relevant subcontractors
- Any additional element Capital Norvex deems relevant

7.3 Obligation to Authorize — Performing Loan Asset

When the Loan Asset is in good standing — meaning no Borrower Default Event exists, the approved budget and schedule are being respected, and professional reports are satisfactory — **the Partner is legally required to authorize the Disbursement within forty-eight (48) hours of receiving Capital Norvex's request.** Any unjustified failure by the Partner to grant authorization within this period is deemed tacit approval and Capital Norvex may proceed with the Disbursement.

The Partner may legitimately withhold authorization only in the following limited circumstances:

- Documented existence of a Borrower Default Event not disclosed by Capital Norvex
- Manifest budget overrun without written authorization from Capital Norvex
- Proven and documented fraud or material misrepresentation attributable to Capital Norvex

7.4 Separate Account per Loan Asset

All Contribution funds are held in a separate, identified bank account designated exclusively to the Loan Asset set out in Schedule A. No withdrawal, transfer or set-off is permitted except as provided in this Agreement. Capital Norvex maintains separate accounting per Loan Asset and makes it available to the Partner upon written request.

8. BORROWER DEFAULT — CAPITAL NORVEX NON-ASSUMPTION OF PAYMENTS

8.1 Capital Norvex Does Not Assume Monthly Payments

In the event of a Borrower Default Event, including non-payment of interest or failure to comply with Loan Asset conditions, **Capital Norvex assumes no substitution obligation and does not make payments on behalf of the defaulting Borrower.** Capital Norvex is neither a guarantor nor surety for the Borrower's obligations to the Partner. The Partner's Contribution is an investment carrying risk, protected by the Movable Hypothec and the first-ranking real estate mortgage held by Capital Norvex.

8.2 Capitalization of Unpaid Interest

Interest owed to the Partner that is not collected due to Borrower default is **automatically capitalized** and added to the balance owed to the Partner. Such capitalized Interest itself accrues interest at the contractual rate. All capitalized Interest is repaid to the Partner from Sale Proceeds upon Repossession, as a priority and before any Net Sale Profit sharing.

8.3 Triggering the Legal Process — 60-Day Notice and Partner Consultation

Upon a Borrower Default Event, Capital Norvex and the Partner **work as a team** to determine the best protection and recovery strategy. The Partner has a formal right to be consulted and to submit recommendations to Capital Norvex throughout the process. Capital Norvex retains final decision-making authority, but commits to giving good-faith consideration to the Partner's observations and advice before any major decision.

The process unfolds as follows:

5. Within five (5) business days of identifying the default, Capital Norvex simultaneously notifies the Borrower and the Partner in writing. Capital Norvex convenes the Partner to a consultation meeting (in person or by videoconference) within the following seven (7) days to jointly agree on an intervention strategy.

6. Capital Norvex issues a formal default notice to the Borrower granting sixty (60) days to remedy the default, pursuant to applicable provisions of the Civil Code of Quebec governing hypothecary rights. During this period, Capital Norvex keeps the Partner informed of all developments via the PWA portal and direct communication.
7. Upon expiry of the 60-day period without satisfactory remediation, Capital Norvex consults the Partner again before initiating Repossession proceedings or court-supervised sale, and adopts the strategy offering the best protection for both parties.
8. Capital Norvex manages all proceedings with diligence and in the best interest of both parties, including site management if necessary, property marketing and distribution of Sale Proceeds according to the priority order in Section 4.5.

8.4 Legal Fees of Repossession — Borne by Capital Norvex

All legal fees, lawyers' fees, notary fees, Receiver fees and other costs incurred by Capital Norvex in Repossession proceedings are collected as **first priority** from Sale Proceeds. The Partner bears no additional costs beyond its initial Contribution. Capital Norvex assumes responsibility for conducting these proceedings diligently and competently.

9. NON-WITHDRAWAL CLAUSE — PARTNER'S IRREVOCABLE COMMITMENT

9.1 Firm and Irrevocable Commitment

The Partner commits in a **firm, irrevocable and unconditional manner** to maintain its Contribution in place for the full term of the Loan Asset, until the Borrower has repaid in full all principal, interest, fees and ancillary amounts — or until Sale Proceeds have been fully distributed in the event of Repossession. No total or partial withdrawal is permitted before this event, except as expressly provided in Section 9.3.

9.2 Prohibition on Assignment and Encumbrance

The Partner may not assign, transfer, pledge or otherwise encumber its rights under this Agreement without the prior written consent of Capital Norvex. Any unauthorized transaction is null and void, and constitutes a Partner Default Event.

9.3 Exceptions — Authorized Early Withdrawal

Early withdrawal of the Contribution is permitted only in one of the following limited circumstances:

- Capital Norvex expressly agrees in writing and makes the necessary arrangements to fully replace the Contribution with another co-investor or its own funds, without interrupting the Loan Asset financing;
- Capital Norvex unilaterally decides to repay the Partner and replace it, pursuant to Section 9.4.

9.4 Capital Norvex's Right to Replace the Partner

Capital Norvex reserves the exclusive right, at any time and without justification, to replace the Partner with another co-investor or its own funds. In such case, Capital Norvex remits to the Partner, in a single payment: (i) the full Contribution; (ii) all capitalized Interest accrued to the repayment date. This full repayment releases both parties from all mutual obligations and requires the Partner to discharge the Movable Hypothec within ten (10) business days. Capital Norvex gives the Partner a minimum notice of ten (10) business days.

9.5 Consequences of Unauthorized Withdrawal

Any unauthorized withdrawal of the Contribution by the Partner constitutes a Partner Default Event, automatically triggering:

- An immediate penalty equal to six (6) months of Interest calculated at the contractual rate on the withdrawn amount
- Joint and several liability of the Partner for all direct and indirect damages suffered by Capital Norvex and by Borrowers affected by the financing interruption
- Capital Norvex's right to immediately exercise any remedy available at law or under this Agreement

10. PARTNER DEFAULT EVENTS

The following constitute Partner Default Events, including:

Financial:

- Failure to advance the Contribution within the agreed timeframe set out in Schedule A
- Unauthorized total or partial withdrawal of the Contribution
- Insolvency, bankruptcy or filing for creditor protection by the Partner
- Proposal or arrangement with the Partner's creditors

Contractual:

- Unjustified and documented refusal to authorize a Disbursement within the timeframe set out in Section 7.3
- Unauthorized assignment or encumbrance of rights under this Agreement
- Material breach of any commitment under this Agreement not remedied within ten (10) days of written notice
- False representation or inaccurate information that misled Capital Norvex

Legal:

- Seizure or encumbrance of the Partner's rights under this Agreement by a third-party creditor
- Judicial proceedings initiated directly by the Partner against the Borrower without Capital Norvex's prior written authorization
- Unauthorized change of control of the Partner (if a legal entity)

Upon a Partner Default Event, Capital Norvex may, without notice or delay: claim all amounts owing by judicial or arbitral proceedings, claim damages and exercise any remedy available at law or under this Agreement.

11. REPRESENTATIONS AND WARRANTIES OF THE PARTIES

11.1 Partner's Representations

The Partner represents and warrants to Capital Norvex that, as of the date of signing and at each Disbursement date:

- It is duly incorporated, authorized and in good standing under applicable laws
- It has full legal and financial capacity to enter into this Agreement
- The Contribution comes from lawful, declared funds compliant with applicable regulatory requirements, including anti-money laundering rules
- There is no litigation, claim or encumbrance that could affect its rights hereunder
- Signing this Agreement does not contravene any prior commitment or obligation
- It has obtained all necessary legal and tax advice before signing

11.2 Capital Norvex's Representations

Capital Norvex represents and warrants to the Partner that, as of the date of signing:

- It is duly incorporated and authorized to carry on business in Quebec and Ontario
- The Loan Asset has been analyzed and approved in accordance with its internal credit policies
- The applicable Norvex Score™ has been calculated in good faith
- It will manage the Loan Asset with diligence, competence and professionalism

12. CONFIDENTIALITY

Each party undertakes to treat as strictly confidential all information received from the other party in connection with this Agreement, including information about Borrowers, Loan Assets, financial terms, internal policies and Capital Norvex's proprietary systems (including Norvex Score™). This confidentiality obligation survives termination or expiry of this Agreement for a period of five (5) years. No information may be disclosed to any third party without the prior written consent of the other party, except as required by law, court order or a competent regulatory authority.

13. TERM AND TERMINATION

This Agreement comes into force upon signature by both parties and remains in force until full repayment of the Loan Asset or, in the event of Repossession, until Sale Proceeds have been fully distributed. It may not be terminated early except as expressly provided herein or by mutual written agreement. Termination or expiry does not affect rights and obligations that, by their nature, survive the end of the agreement, including confidentiality, accounting obligations and Movable Hypothec discharge obligations.

14. GENERAL PROVISIONS

Governing Law	Laws of the Province of Quebec (Canada)
Jurisdiction	District of Montreal, Quebec
Assignment	Prohibited without prior written consent of Capital Norvex
Amendments	In writing, signed by both parties
Severability	Any invalid clause does not affect the remainder of this Agreement
Notices	In writing, including certified email or registered mail
Entire Agreement	This Agreement constitutes the entire agreement between the parties
Waiver	No tolerance shall constitute a permanent waiver
Official Language	This Agreement is also available in French, which shall prevail in Quebec

15. SIGNATURES

IN WITNESS WHEREOF, the parties have signed this Partnership Agreement on the date indicated below, having read it in full and obtained such legal and tax advice as they deemed appropriate. The parties acknowledge that this Agreement constitutes a firm and legally binding commitment.

CAPITAL NORVEX INC. — EXCLUSIVE MANAGER

Authorized Representative:

Title:

Date:

Signature:

PARTNER

Corporate Name:

Authorized Representative:

Title:

Date:

Signature:

SCHEDULE A — LOAN ASSET DESCRIPTION

File Name / Borrower	____
Property / Project Address	____
Type of Financing	Commercial Construction / Infrastructure
Total Loan Amount	$____ CAD
Partner Contribution	$____ CAD
CN File Fees (3% to 3.5%)	$____ CAD — Capital Norvex
Annual Interest Rate to Partner	_____ % (calculated daily, compounded monthly)
Norvex Score™	_____ / 100
Loan Term	_____ months
Interest Payment Structure	Capitalized — repaid in full at maturity
Date of First Disbursement (Notary)	________________
Expected Maturity Date	________________
Real Estate Mortgage Ranking (Borrower)	1st ranking — Capital Norvex Inc.
Movable Hypothec RPMR (Partner)	In favour of Partner on the Loan Asset
Designated Notary	____
Profit Sharing on Repossession Sale	50% Capital Norvex / 50% Partner (if net profit)

Initialled — Capital Norvex: ______________________

Initialled — Partner: ______________________

This Agreement is governed by the laws of the Province of Quebec (Canada). The French version shall prevail in Quebec.